DEPARTMENT OF ECONOMIC SECURITY
Your Partner For A Stronger Arizona

Douglas A. Ducey
Governor

Michael Wisehart
Director

MEMORANDUM OF NEGOTIATIONS

BPM003908 UI Benefits Modernization

The Arizona Department of Economic Security (the "Agency") and Geographic Solutions Inc. (the "Contractor") agree to the following negotiated issues.

In accordance with A.R.S. § 41-2534 Competitive Sealed Proposals, R2-7-C314, Negotiations with Responsible Offerors and Revisions of Offers, and §41-2502 Determinations, ADES is providing a summary of the accepted language agreed upon during negotiations as well as the final results of the Agency's review of the Contractor's Best and Final Offer deviations and exceptions:

1. Reference: SOW 8.10

   Original Language: Develop and update the content of the ALM and SCM Systems in the Collaborative Workspace based on changes made as a result of UAT. This task shall reflect System code as of the conclusion of the UAT and task and at a minimum include:

   Proposed Deviation or Exception: Develop and update the content of the ALM and SCM Systems in the Collaborative Workspace based on changes made as a result of UAT. This task shall reflect System code, but excluding any source code, as of the conclusion of the UAT and task and at a minimum include:

   Results: Accepted.

2. Reference: SOW 8.10.1

   Original Language: Project Source Code;

   Proposed Deviation or Exception: ~~Project Source Code~~;

   Results: Accepted.

3. Reference: SOW 9.2.8.1

   Original Language: Maintenance. The Contractor shall perform regular and routine maintenance of the hardware and software associated with the UI Modernization Solution. Maintenance notifications shall be distributed via email no less than seven (7) calendar days prior to scheduled maintenance and as soon as reasonably possible for emergency maintenance;

   Proposed Deviation or Exception: Maintenance. The Contractor shall perform regular and routine maintenance of the hardware and software associated with the UI Modernization Solution and provided by Contractor. Maintenance notifications shall be distributed via

email no less than seven (7) calendar days prior to scheduled maintenance and as soon as reasonably possible for emergency maintenance;

Results: Accepted.

4. Reference: SOW 9.4.1 Warranty

   Original Language: The Contractor shall provide Post- Implementation Warranty Services for the Solution Replacement System for a minimum twelve (12)-month period beginning day one (1) following completion of Implementation with statewide system roll out. Post-Implementation Warranty Services provided by the Contractor shall include Defect correction, System operations and maintenance, and knowledge transfer to State staff, and completion of certain Enhancements. The Contractor shall warranty the System against any defects for a period of twelve (12) months from full System Implementation. Determination as to whether or not a System issue constitutes a Defect, an Enhancement within scope of the requirements, or an Enhancement outside the scope of the Contract shall be resolved based upon a review of the Requirements Traceability Matrix, as delivered at the end of Implementation, using the Project's scope control and change management procedures. ADES shall determine and prioritize all defects identified.

   Proposed Deviation or Exception: The Contractor shall provide Post-Implementation Warranty Services for the Solution Replacement System for a minimum twelve (12)-month period beginning day one (1) following completion of Implementation with statewide system roll out. Post-Implementation Warranty Services provided by the Contractor shall include Defect correction, System operations and maintenance, ~~and knowledge transfer to State staff~~, and completion of certain Enhancements. The Contractor shall warranty the System against any defects for a period of twelve (12) months from full System Implementation. Determination as to whether or not a System issue the Contract shall be resolved based upon a review of the Requirements Traceability Matrix, as delivered at the end of Implementation, using the Project's scope control and change management procedures. ADES and Contractor shall mutually determine and prioritize all defects identified.

   Results: Accepted.

5. Reference: SOW 9.6.1 Transition Services

   Original Language: The Contractor shall provide a knowledge transfer plan for any infrastructure and system components that must be maintained by ADES technical staff post implementation (if applicable). At a minimum, the plan shall include:
   9.6.1.1 Technical Training and Knowledge Transfer Plan
   9.6.1.2 Technical Training Materials
   9.6.1.3 Technical Training and Knowledge Transfer Reports

   Proposed Deviation or Exception: The Contractor shall provide a knowledge transfer plan ~~for any infrastructure and system components that must be maintained by ADES technical staff post implementation (if applicable)~~. At a minimum, the plan shall include:
   9.6.1.1 Technical Training and Knowledge Transfer Plan
   9.6.1.2 Technical Training Materials
   9.6.1.3 Technical Training and Knowledge Transfer Reports

Results: Accepted.

6. Reference: SOW 10.14.16

   Original Language: The ADES will, at Contractor's expense, assist the Contractor in notifying any individual whose PII was compromised.

   Proposed Deviation or Exception: If required by applicable law, ADES will, at Contractor's expense, assist the Contractor in notifying any individual whose PII was compromised if the compromise was due to Contractor's failure to protect PII as required under Section 10.15.3.2.2.

   Results: Accepted.

7. Reference: SOW 10.14.17

   Original Language: Offer each client, whose PII was compromised, a one (1) year credit monitoring service at Contractor's expense.

   Proposed Deviation or Exception: If required by applicable law, offer each client whose PII was compromised, a one (1) year credit monitoring service at Contractor's expense if the compromise was due to Contractor's failure to protect PII as required under Section 10.15.3.2.2.

   Results: Accepted.

8. Reference: SOW 16.4 Incident Resolution Service Level Agreements

   Original Language: See SOW 16.4 Incident Resolution Level Agreements table.

   Proposed Deviation or Exception:

Incident Resolution Service Level Agreements

Service Level Type	Service Measure	Response Time	Resolution Time	SLA	Credit	Service Level Start Date
Severity 1	Time to Resolve from First Contact	~~60~~30 minutes	~~4~~2 hours	95%	3%	Steady State commencement date
Severity 2	Time to Resolve from First Contact	4 hours	5 business days~~8 hours~~	95%	2%	Steady State commencement date
Severity 3	Time to Resolve from First Contact	1 business day	~~1~~42 business days	95%	1%	Steady State commencement date

   Results: Accepted.

9. Reference: SOW 16.4 Availability Service Level Agreements

   Original Language: See SOW 16.4 Availability Service Level Agreements

Proposed Deviation or Exception:

Response Time of the Application	Effective response time for users accessing the application is Sun-Sat, 00:00-24:00 CET (7 x 24)	3 seconds (Mean), 7 seconds (Max)	99.5%	13%	Complex Response time of the application for the user to includeall functions of theapplication at the server, but excluding any latency caused by a failed or low-performance network.	Daily

This service level does not apply to complex transactions such as largereports, queries and searches

Results: Accepted.

10. Reference: SOW 16.5.1

Original Language:
16.5 Failure to Meet Service Levels
16.5.1 Fee Reductions: The apportionment of monthly at risk fee reductions amount for each Contract Month for failure to meet agreed SLAs is 13 percent (%) of the then applicable Monthly Services Charge. The Fee Reductions for Contractor failure to achieve the SLAs are set forth in Section 16.4. The non-attainment of SLAs by Contractor will result in a reduction of fees for each affected SLA by the percentage amount shown in Section 16.4. Fee reductions are capped on a monthly basis, not to exceed the total Monthly At-Risk Amount at any point during the Contract Year. The ADES has the discretion to change the credit percentage upon mutual written agreement.

Proposed Deviation or Exception: Fee Reductions: The maximum total apportionment of monthly at-risk fee reductions amount for each Contract Month for failure to meet agreed SLAs is ~~13~~ 10 percent (10%) of the then applicable Monthly Services Charge ("Monthly At-Risk Amount")

Results: Accepted.

11. Reference: SOW 16.5.4

Original Language: Failure to resubmit a Deliverable within five (5) days of rejection and/or make the changes requested by ADES will result in ADES retaining five (5) percent (%) of the invoice value of the Phased Milestone Deliverable in addition to any other amounts withheld under other provisions of this contract. This additional deliverable retainage will be released after successful completion of the DDI project and implementation of the System.

Proposed Deviation or Exception: Failure to resubmit a Deliverable within five (5) days of rejection due to a material non-conformity with the specifications in the applicable statement of work ~~and/or make the changes requested by ADES~~ will result in ADES retaining five (5) percent (%) of the invoice value of the Phased Milestone Deliverable ~~in addition to any other amounts withheld under other provisions of this contract~~. This

additional deliverable retainage will be released after successful completion of the DDI project and implementation of the System.

Results: Accepted.

12. Reference: SOW 17.1.1.1.4

    Original Language: ADES at its sole cost and expense, shall have the right to conduct, through a means acceptable to ADES any testing necessary to verify that all necessary elements of System and Documentation related to the System as a whole or to ADES's customizations have been placed in escrow as part of the applicable Source Code Escrow Package.

    Proposed Deviation or Exception: ADES at its sole cost and expense, shall have the right to conduct, through a means acceptable to ADES any testing necessary to verify that all necessary elements of System and Documentation related to the System as a whole or to ADES's customizations have been placed in escrow as part of the applicable Source Code Escrow Package, but ADES shall not have access to the Source Code Escrow Package nor shall the Source Code Escrow Package be released to ADES for such testing but the Escrow Agent will be permitted to verify the that the Source Code Escrow Package meets the requirements of the Escrow Agreement.

    Results: Accepted.

13. Reference: SOW 17.1.2.1.1

    Original Language:
    17.1.2 Escrow Release Events

    17.1.2.1. The Escrow Agreement will allow for the release of all material in the escrow account upon any of the following (each, a "Release Condition"):

    17.1.2.1.1 The institution of proceedings under any bankruptcy, insolvency, reorganization or similar law, by or against Contractor, or the appointment of a receiver or similar officer for Contractor, which is not vacated or fully stayed within sixty (60) days after the institution or occurrence thereof; or

    Proposed Deviation or Exception: The institution of proceedings under any bankruptcy, insolvency, reorganization or similar law, by or against Contractor, or the appointment of a receiver or similar officer for Contractor, which is not vacated or fully stayed within sixty (60) days after the institution or occurrence thereof and Contractor has ceased to perform under the Contract without appointing a successor who will assume Contractor's performance obligations under the Contract; or

    Results: Accepted.

14. Reference: SOW 17.1.2.1.2

    Original Language:
    17.1.2 Escrow Release Events

17.1.2.1. The Escrow Agreement will allow for the release of all material in the escrow account upon any of the following (each, a “Release Condition”):

17.1.2.1.2 Any termination of the Agreement by ADES for Contractor’s material breach pursuant to Section 52 of the Agreement

Proposed Deviation or Exception: 17.1.2.1.2 Any termination of the Agreement by ADES for Contractor’s material breach pursuant to Section 52 of the Agreement arising from Contractor's refusal to perform under the Contract.

Results: Accepted.

15. Reference: STC Section 2 Acceptance

Original Language: Determination of the acceptability of services shall be made by the sole judgment of the State. Acceptance shall be in writing, verbal acceptance will not be allowed. Services shall be completed in accordance with the Scope of Work, agreed to and accepted schedules, plans, and agreed to performance standards. Acceptance shall be one hundred percent (100%) functionality, which will be reasonably determined by the State. Acceptance criteria shall include, but not be limited to conformity to the scope of work, quality of workmanship and successfully performing all required Tasks. Nonconformance to any of the stated acceptance and performance criteria of both services and or products as required shall result in a delay for payment. Payment shall not be made until nonconformance to the criteria is corrected as determined by the State.

Proposed Deviation or Exception:
Determination of the acceptability of services shall be made by the sole judgment of the State which shall not be withheld if the deliverables materially conform to the acceptance criteria. Acceptance shall be in writing, verbal acceptance will not be allowed. Services shall be completed in accordance with the Scope of Work, agreed to and accepted schedules, plans, and agreed to performance standards. ~~Acceptance shall be one hundred percent (100%) functionality, which will be reasonably determined by the State. Acceptance criteria shall include, but not be limited to conformity to the scope of work, quality of workmanship and successfully performing all required Tasks~~. Material n~~N~~onconformance to any of the stated acceptance and performance criteria of both services and or products as required in the acceptance criteria shall result in a delay for payment. Payment shall not be made until material nonconformance to the criteria is corrected as determined by the State.

Results: Accepted.

16. Reference: STC 4.1.2 Assignment

Original Language:
4. Assignment
In Addition to the Uniform Terms and Conditions, Section 5.3, the following shall apply:

4.1 Merger, Reorganization or Change of Ownership

4.1.2 This Contract is voidable and subject to immediate cancellation by the Department upon the Contractor becoming insolvent or filing proceedings in bankruptcy or reorganization under the United States Code, or assigning any right(s) or obligations under this Contract without the prior written consent of the Department.

Proposed Deviation or Exception: This Contract is voidable and subject to immediate cancellation by the Department upon the Contractor becoming insolvent or filing proceedings in bankruptcy or reorganization under the United States Code, that are not dismissed within forty-five (45) days after filing, or assigning any right(s) or obligations under this Contract without the prior written consent of the Department.

Results: Accepted.

17. Reference: STC 8.3 Code of Conduct

Original Language:
8. Code of Conduct
The Contractor shall avoid any action that might create or result in the appearance of having:

8.3 Provided favorable or unfavorable treatment to anyone

Proposed Deviation or Exception: Provided favorable or unfavorable treatment to anyone in violation of applicable laws.

Results: Accepted.

18. Reference: STC 10.1 Confidentiality

Original Language: The Contractor shall observe and abide by all applicable State and federal statutes, rules and regulations regarding the use or disclosure of information including, but not limited to, information concerning applicants for and recipients of contract services. To the extent permitted by law, the Contractor shall release information to the Department and to the Attorney General's Office as required by the terms of this Contract, by law or upon their request.

Proposed Deviation or Exception: ~~The Contractor~~ Each Party shall observe and abide by all applicable State and federal statutes, rules and regulations regarding the use or disclosure of information including, but not limited to, information concerning applicants for and recipients of contract services. To the extent permitted by law, the ~~Contractor~~ receiving party ("Recipient") shall release information to a third-party, the Department and to the Attorney General's Office as required by the terms of this Contract, by law or upon their request. If ADES receive a Public Record Request, its shall provide Contractor written notice of such request, and Contractor shall have at least twenty (20) days to seek court intervention to prohibit the disclosure of Contractor's information.

Results: Denied.

19. Reference: STC 11.2 Contract Term and Option to Extend

Original Language: 11.2 The State has no obligation to extend or renew this Contract. However, the State shall have the right, at its sole option, to renew the Contract in accordance with any extensions the State may receive for supplemental periods up to a maximum Contract term of up to ten (10) years. In the event that the State exercises such right, all terms, conditions and provisions of the original Contract shall remain the same and apply during the renewal period with the exception of price. The Contractor shall agree that the price stated in the original Contract shall apply unless otherwise allowed.

Proposed Deviation or Exception: In the event that the State exercises such right, all terms, conditions and provisions of the original Contract shall remain the same and apply during the renewal period with the exception of price to be mutually agreed to by the parties but shall not be less than the prices included in this Contract. ~~The Contractor shall agree that the price stated in the original Contract shall apply unless otherwise allowed~~.

Results: Withdrawn

20. Reference: STC 12 Cooperation

Original Language: The Department may undertake or award other contracts for additional work related to the work performed by the Contractor, and the Contractor shall fully cooperate with such other Contractors and State employees, and carefully fit its own work to such other Contractors' work. The Contractor shall not commit or permit any act which will interfere with the performance of work by any other Contractor or by State employees. The Contractor shall cooperate as the State deems necessary, with the transfer of work, services, case records and files performed or prepared by the Contractor to other Contractor(s).

Proposed Deviation or Exception: The Department may undertake or award other contracts for additional work related to the work performed by the Contractor, and the Contractor shall fully cooperate with such other Contractors and State employees, and carefully fit its own work to such other Contractors' work. The Contractor shall not commit or permit any act which will interfere with the performance of work by any other Contractor or by State employees. The Contractor shall cooperate as the State deems necessary, with the transfer of work, services, case records and files performed or prepared by the Contractor to other Contractor(s). Notwithstanding the foregoing, Contractor shall not and shall not be required to transfer Contractor IP or Contractor's Confidential Information.

Results: Denied.

21. Reference: STC 19.1.1 Indemnification

Original Language: 19.1.1 To the fullest extent permitted by law, Contractor shall defend, indemnify, and hold harmless the State of Arizona, and its departments, agencies, boards, commissions, universities, officers, officials, agents, and employees (hereinafter referred to as “Indemnitee”) from and against any and all claims, actions, liabilities, damages, losses, or expenses (including court costs, attorneys’ fees, and costs of claim processing, investigation and litigation) (hereinafter referred to as “Claims”) for bodily injury or personal injury (including death), or loss or damage to tangible or intangible property caused, or alleged to be caused, in whole or in part, by the negligent or willful acts or omissions of Contractor or any of its owners, officers, directors, agents, employees or subcontractors.

This indemnity includes any claim or amount arising out of, or recovered under, the Workers' Compensation Law or arising out of the failure of such Contractor to conform to any federal, state, or local law, statute, ordinance, rule, regulation, or court decree. It is the specific intention of the parties that the Indemnitee shall, in all instances, except for Claims arising solely from the negligent or willful acts or omissions of the Indemnitee, be indemnified by Contractor from and against any and all claims. It is agreed that Contractor will be responsible for primary loss investigation, defense, and judgment costs where this indemnification is applicable. In consideration of the award of this contract, the Contractor agrees to waive all rights of subrogation against the State of Arizona, its officers, officials, agents, and employees for losses arising from the work performed by the Contractor for the State of Arizona.

Proposed Deviation or Exception: 19.1.1 To the fullest extent permitted by law, Contractor shall defend, indemnify, and hold harmless the State of Arizona, and its departments, agencies, boards, commissions, universities, officers, officials, agents, and employees (hereinafter referred to as "Indemnitee") from and against any and all third party claims, actions, liabilities, damages, losses, or expenses (including court costs, attorneys' fees, and costs of claim processing, investigation and litigation) (hereinafter referred to as "Claims") for bodily injury or personal injury (including death), or loss or damage to tangible or intangible property caused, or alleged to be caused, in whole or in part, by the negligent or willful acts or omissions of Contractor or any of its owners, officers, directors, agents, employees or subcontractors. This indemnity includes any claim or amount arising out of, or recovered under, the Workers' Compensation Law or arising out of the failure of such Contractor to conform to any federal, state, or local law, statute, ordinance, rule, regulation, or court decree. It is the specific intention of the parties that the Indemnitee shall, in all instances, except for Claims arising solely from the negligent or willful acts or omissions of the Indemnitee, be indemnified by Contractor from and against any and all third party claims. It is agreed that Contractor will be responsible for primary loss investigation, defense, and judgment costs where this indemnification is applicable. In consideration of the award of this contract, the Contractor agrees to waive all rights of subrogation against the State of Arizona, its officers, officials, agents, and employees for losses arising from the work performed by the Contractor for the State of Arizona. Notwithstanding Section 6.2.1 and Section 6.3 of the Uniform Terms and Conditions, Contractor's indemnification obligations shall be limited to third-party claims.

Results: Accepted.

22. Reference: STC 19.9 Approval & Modification

Original Language:
19.9 Approval and Modifications
The Contracting Agency, in consultation with State Risk, reserves the right to review or make modifications to the insurance limits, required coverages, or endorsements throughout the life of this contract, as deemed necessary. Such action will not require a formal Contract Amendment but may be made by administrative action.

Proposed Deviation or Exception: 19.9 Approval and Modifications
The Contracting Agency, in consultation with State Risk, reserves the right to review or make modifications to the insurance limits, required coverages, or endorsements throughout the life of this contract, as deemed necessary. Such action will not require a

formal Contract Amendment but may be made by administrative action. The modifications to the insurance limits, required coverages or endorsements throughout the life of this contract shall not increase Contractor's cost for insurance limits, required coverages or endorsements as originally required under this Contract by greater than five percent (5%) throughout the life of this contract. If Contractor's costs exceed five percent (5%) then Contractor shall notify ADES of such increase and the additional insurance limits, required coverages or endorsements shall not be required without Contractor's prior written consent.

Results: Accepted.

23. Reference: STC 21.1 Levels of Service

Original Language:
21 Levels of Service
21.1 If the Contractor determines service recipient eligibility, the Contractor shall maintain and regulate the units or services set forth in this Contract to ensure continuity and availability of services to eligible persons during the term of this Contract and during any transition to a subsequent contractor.

Proposed Deviation or Exception: Contractor will be paid for the transition services pursuant to the transition rates identified in this Contract ("Transition Rates"). Contractor may not refuse or delay transition assistance under any circumstances including without limitation the State's material breach of the Contract. Prior to the transition services, the State shall submit a work order to Contractor for such services. Contractor shall provide the State with a quote to provide the services identified in the work and applying the Transition Rates and upon acceptance of the quote by the State, Contractor shall perform the transition services identified in the work order.

Results: Accepted.

24. Reference: STC 23 Non-Availability of Funds

Original Language: In accordance with A.R.S. § 35-154, every payment obligation of the State under the Contract is conditioned upon the availability of funds appropriated or allocated for payment of such obligation. If funds are not allocated and available for the continuance of this Contract, this Contract may be terminated by the State at the end of the period for which funds are available. The Director of the Department shall have the sole and unfettered discretion in determining the availability of funds. No liability shall accrue to the State in the event this provision is exercised, and the State shall not be obligated or liable for any future payments or for any damages as a result of termination under this paragraph.

Proposed Deviation or Exception: In accordance with A.R.S. § 35-154, every payment obligation of the State under the Contract is conditioned upon the availability of funds appropriated or allocated for payment of such obligation. If funds are not allocated and available for the continuance of this Contract, this Contract may be terminated by the State at the end of the period for which funds are available. The Director of the Department shall have the sole and unfettered discretion in determining the availability of funds. No liability shall accrue to the State in the event this provision is exercised, and the State shall not be

obligated or liable for any future payments or for any damages as a result of termination under this paragraph, but Contractor shall be paid for all work performed up to the date of such termination.

Results: Withdrawn.

25. Reference: STC 24.3.1 Non-Discrimination

Original Language: 24.3.1 "Under Titles VI and VII of the Civil Rights Act of 1964 (Title VI and VII) and the Americans with Disabilities Act of 1990 (ADA) Section 504 of the Rehabilitation Act of 1973 and the Age Discrimination Act of 1975, (**insert Contractor name here**) prohibits discrimination in admissions, programs, services, activities or employment based on race, color, religion, sex, national origin, age, and disability. The (**insert Contractor name here**) must make a reasonable accommodation to allow a person with a disability to take part in a program, service, or activity. Auxiliary aids and services are available upon request to individuals with disabilities. For example, this means that if necessary, the (**insert Contractor name here**) must provide sign language interpreters for people who are deaf, a wheelchair accessible location, or enlarged print materials. It also means that the (**insert Contractor name here**) will take any other reasonable action that allows you to take part in and understand a program or activity, including making reasonable changes to an activity. If you believe that you will not be able to understand or take part in a program or activity because of your disability, please let us know of your disability needs in advance if at all possible. To request this document in alternative format or for further information about this policy please contact: (insert Contractor contact person and phone number here) "Para obtener este documento en otro formato o obtener información adicional sobre esta política, nombre y telefono (insert Contractor contact person and phone number here)."

Proposed Deviation or Exception: 24.3.1 "Under Titles VI and VII of the Civil Rights Act of 1964 (Title VI and VII) and the Americans with Disabilities Act of 1990 (ADA) Section 504 of the Rehabilitation Act of 1973 and the Age Discrimination Act of 1975, (**insert Contractor name here**) prohibits discrimination in admissions, programs, services, activities or employment based on race, color, religion, sex, national origin, age, and disability. The (**insert Contractor name here**) must make a reasonable accommodation to allow a person with a disability to take part in a program, service, or activity. Auxiliary aids and services are available upon request to individuals with disabilities. For example, this means that if necessary, the (**insert Contractor name here**) must provide closed captioning or sign language interpreters for people who are deaf, a wheelchair accessible location, or enlarged print materials. It also means that the (**insert Contractor name here**) will take any other reasonable action that allows you to take part in and understand a program or activity, including making reasonable changes to an activity. If you believe that you will not be able to understand or take part in a program or activity because of your disability, please let us know of your disability needs in advance if at all possible. To request this document in alternative format or for further information about this policy please contact: (insert Contractor contact person and phone number here) "Para obtener este documento en otro formato o obtener información adicional sobre esta política, nombre y telefono (insert Contractor contact person and phone number here)."

Results: Accepted.

26. Reference: STC 26 Order of Precedence

Original Language: In addition to the Uniform Terms and Conditions, Section 2.3, the following shall apply:

In the event of a conflict in the provisions of the Contract, as accepted by the State and as they may be amended, the following shall prevail in the order set forth below:
26.1 ADES Special Terms and Conditions;
26.2 Uniform Terms and Conditions;
26.3 Scope of Work or Specification;
26.4 Attachments that are not included in the Special Terms and Conditions or Uniform Terms and Conditions
26.5 Exhibits; and
26.6 Documents referenced or included in the Solicitation.

Proposed Deviation or Exception: In addition to the Uniform Terms and Conditions, Section 2.3, the following shall apply:

In the event of a conflict in the provisions of the Contract, as accepted by the State and as they may be amended, the following shall prevail in the order set forth below:
26.1 ADES Special Terms and Conditions;
26.2 Uniform Terms and Conditions;
26.3 Scope of Work or Specification;
26.4 Attachments that are not included in the Special Terms and Conditions or Uniform Terms and Conditions
26.5 Exhibits; and
26.6 Documents referenced or included in the Solicitation.
26.7 Contractor's License Agreement

Results: Accepted.

27. Reference: STC 27.2.2 Pandemic Contractor Performance

Original Language: 27.2.2 The State shall not incur any liability if a pandemic is declared and emergency procurements are authorized by the Director of the Arizona Department of Administration per A.R.S. § 41-2537 as may be amended of the Arizona Procurement Code.

Proposed Deviation or Exception: The State shall not incur any liability if a pandemic is declared and emergency procurements are authorized by the Director of the Arizona Department of Administration per A.R.S. § 41-2537 as may be amended of the Arizona Procurement Code and Contractor shall on be required to disclose State Data to any contract or vendor obtained through such procurement in a format usable by the State or its third party contractors. "State Data" shall mean any data provided to Contractor by the State or State's end users.

Results: Accepted.

28. Reference: STC 30.4 Payment Recoupment

Original Language:
30.4 Any amounts paid by the Department for services which duplicate services covered or reimbursed by other specific grants, contracts, or payments;

Proposed Deviation or Exception: Any amounts paid by the Department for services which duplicate services covered or reimbursed by other specific grants, contracts, or payments directly related to Contractor's performance under this Contract;

Results: Accepted.

29. Reference: STC 49 Supporting Documents & Information

Original Language: In addition to any documents, reports or information required by any other section of this Contract, Contractor shall furnish the Department with any further documents and information deemed necessary by the Department. Upon receipt of a request for information from ADES, the Contractor shall provide complete and accurate information no later than fifteen (15) days after the receipt of the request.

Proposed Deviation or Exception: In addition to any documents, reports or information required by any other section of this Contract, Contractor shall furnish the Department with any further documents and information related to this Contract deemed necessary by the Department. Upon receipt of a request for information from ADES, the Contractor shall provide complete and accurate information no later than fifteen (15) days after the receipt of the request. Notwithstanding the foregoing, Contractor shall not be required to disclose source code to the Department.

Results: Accepted.

30. Reference: STC 52.1 Termination for Any Reason

Original Language: In the event the Contract is terminated, with or without cause, or expires, the Contractor, whenever determined appropriate by the Department, shall assist the Department in the transition of services or eligible persons to other Contractors. Such assistance and coordination shall include, but not be limited to, the forwarding of program and other records as may be necessary to assure the smoothest possible transition and continuity of services. The cost of reproducing and forwarding such records and other materials shall be borne by the Contractor. The Contractor must make provisions for continuing all management/administrative services until the transition of services or eligible persons is complete and all other requirements of this Contract are satisfied.

Proposed Deviation or Exception:
In the event the Contract is terminated, with or without cause, or expires, the Contractor, whenever determined appropriate by the Department, shall assist the Department in the transition State Data ~~of services or eligible persons~~ to other Contractors. Such assistance and coordination shall include, but not be limited to, the forwarding of ~~program and other records~~ State Data as may be necessary to assure the smoothest possible transition and continuity of services. The cost of reproducing and forwarding such ~~records and other materials~~ State Data shall be borne by the Contractor. The Contractor must make provisions for continuing all management/administrative services until the transition of

services or eligible persons is complete and all other requirements of this Contract are satisfied and the State shall pay Contractor for such services.

Results: Accepted.

31. Reference: STC 52.1 Termination for Any Reason

Original Language: 52.1 In the event the Contract is terminated, with or without cause, or expires, the Contractor, whenever determined appropriate by the Department, shall assist the Department in the transition of services or eligible persons to other Contractors. Such assistance and coordination shall include, but not be limited to, the forwarding of program and other records as may be necessary to assure the smoothest possible transition and continuity of services. The cost of reproducing and forwarding such records and other materials shall be borne by the Contractor. The Contractor must make provisions for continuing all management/administrative services until the transition of services or eligible persons is complete and all other requirements of this Contract are satisfied.

Proposed Deviation or Exception: 52.1 In the event the Contract is terminated, with or without cause, or expires, the Contractor, whenever determined appropriate by the Department, shall assist the Department in the transition of services or eligible persons to other Contractors. Such assistance and coordination shall include, but not be limited to, the forwarding of program and other records as may be necessary to assure the smoothest possible transition and continuity of services. The cost of reproducing and forwarding such records and other materials shall be borne by the Contractor. The Contractor must make provisions for continuing all management/administrative services until the transition of services or eligible persons is complete and all other requirements of this Contract are satisfied. Notwithstanding the foregoing and Section 9.5.2 of the Uniform Terms and Conditions, Contractor shall not and shall not be required to transfer Contractor's IP or Contractor's Confidential Information to the Department or any third-party: (a) during the transition services; or (b) upon expiration or termination of this Contract.

Results: Accepted.

32. Reference: STC 52.2 Termination for Any Reason

Original Language: In the event of termination or suspension of the Contract by the Department, such termination or suspension shall not affect the obligation of the Contractor to indemnify the Department and the State for any claim by any other party against the State or Department arising from the Contractor's performance of this Contract and for which the Contractor would otherwise be liable under this Contract. To the extent such indemnification is excluded by A.R.S. § 41-621 et seq.as may be amended or an obligation is unauthorized under A.R.S. § 35-154 as may be amended the provisions of this paragraph shall not apply.

Proposed Deviation or Exception: In the event of termination or suspension of the Contract by the Department, such termination or suspension shall not affect the obligation of the Contractor to indemnify the Department and the State pursuant to the indemnification obligations contained in this Contract. ~~for any claim by any other party against the State or Department arising from the Contractor's performance of this Contract and for which the Contractor would otherwise be liable under this Contract.~~ To the extent

such indemnification is excluded by A.R.S. § 41-621 et seq.as may be amended or an obligation is unauthorized under A.R.S. § 35-154 as may be amended the provisions of this paragraph shall not apply.

Results: Withdrawn.

33. Reference: STC 53 Termination for Default

Original Language: In addition to the Uniform Terms and Conditions, Section 9.5, the Department may immediately terminate this Contract if the Department determines that the health or welfare or safety of service recipients is endangered.

Proposed Deviation or Exception: ~~In addition to the Uniform Terms and Conditions, Section 9.5,~~ The Department may immediately terminate this Contract if the Department determines that the health or welfare or safety of service recipients is endangered. The State may terminate the Contract in whole or in part due to the failure of the Contractor to comply with any material term or condition of the Contract, to acquire and maintain all required insurance policies, bonds, licenses and permits~~, or to make satisfactory progress in performing the Contract~~. The Procurement Officer shall provide written notice of the termination and the reasons for it to the Contractor.

Results: Accepted.

34. Reference: STC 54 Transfer of Knowledge

Original Language: The Contractor shall, whenever feasible, share strategies and techniques with Department staff to transfer the skills and knowledge acquired in the delivery of the contracted service.

Proposed Deviation or Exception: The Contractor shall, whenever feasible, share strategies and techniques with Department staff to transfer the skills and knowledge regarding the use of the contracted services acquired in the delivery of the contracted services.

Results: Accepted.

35. Reference: STC 55 Transition Activities

Original Language: In the event that a contract is awarded to a new contractor for services similar to those being performed by Contractor under this Contract, there shall be a transition of services period. During this period, the Contractor under this Contract shall work closely with the new contractor's personnel and/or Department staff to ensure a smooth and complete transfer of duties and responsibilities. The Department's authorized representative will coordinate all transition activities. A transition plan will be developed in conjunction with the existing Contractor to assist the new contractor and/or Department staff to implement the transfer of duties. The Department reserves the right to determine which projects/service delivery nearing completion will remain with the current Contractor of record.

Proposed Deviation or Exception: In the event that a contract is awarded to a new contractor for services similar to those being performed by Contractor under this Contract, there shall be a transition of services period. During this period, the Contractor under this Contract shall work closely with the new contractor's personnel and/or Department staff to ensure a smooth and complete transfer of duties and responsibilities. The Department's authorized representative will coordinate all transition activities. A transition plan will be developed in conjunction with the existing Contractor to assist the new contractor and/or Department staff to implement the transfer of duties. The Department reserves the right to determine which projects/service delivery nearing completion will remain with the current Contractor of record. During the transition services period, Contractor shall provide the State Data to the Department or its new contractor, but Contractor shall not provide or transition Contractor IP.

Results: Accepted.

36. Reference: STC 58 Warranty of Services

Original Language: The Contractor warrants that all services provided under this Contract shall conform to the requirements stated herein and any amendments hereto. The Department's acceptance of services provided by the Contractor shall not relieve the Contractor from its obligations under this warranty. In addition to its other remedies, the Department Procurement Officer may, at the Contractor's expense, require prompt correction of any services failing to meet the Contractor's warranty herein. Services corrected by the Contractor shall be subject to all of the provisions of this Contract in the manner and to the same extent as the services originally furnished

Proposed Deviation or Exception: The Contractor warrants that all services provided under this Contract shall materially conform to the requirements stated herein and any amendments hereto. The Department's acceptance of services provided by the Contractor shall not relieve the Contractor from its obligations under this warranty. In addition to its other remedies, the Department Procurement Officer may, at the Contractor's expense, require prompt correction of any services failing to meet the Contractor's warranty herein. Services corrected by the Contractor shall be subject to all of the provisions of this Contract in the manner and to the same extent as the services originally furnished

Results: Accepted.

37. Reference: UTC 2.2 Implied Contract Terms

Original Language: 2.2. Implied Contract Terms. Each provision of law and any terms required by law to be in this Contract are a part of this Contract as if fully stated in it.

Proposed Deviation or Exception: ~~2.2. Implied Contract Terms. Each provision of law and any terms required by law to be in this Contract are a part of this Contract as if fully stated in it.~~

Results: Denied.

38. Reference: UTC 2.3.8 Contract Order of Precedence

Original Language: N/A- This is Additional Language

Proposed Deviation or Exception: Insert Contractor's License Agreement

Results: Withdrawn.

39. Reference: UTC 3.4 Facilities Inspection and Materials Testing

Original Language: 3.4. Facilities Inspection and Materials Testing. The Contractor agrees to permit access to its facilities, subcontractor facilities and the Contractor's processes or services, at reasonable times for inspection of the facilities or materials covered under this Contract. The State shall also have the right to test, at its own cost, the materials to be supplied under this Contract. Neither inspection of the Contractor's facilities nor materials testing shall constitute final acceptance of the materials or services. If the State determines non-compliance of the materials, the Contractor shall be responsible for the payment of all costs incurred by the State for testing and inspection.

Proposed Deviation or Exception: If the State determines material non-compliance of the materials, the Contractor shall be responsible for the payment of all costs incurred by the State for testing and inspection.

Results: Withdrawn.

40. Reference: STC 59 Property of the State (New)

Original Language: 3.7. Property of the State. Any materials, including reports, computer programs and other deliverables, created under this Contract are the sole property of the State. The Contractor is not entitled to a patent or copyright on those materials and may not transfer the patent or copyright to anyone else. The Contractor shall not use or release these materials without the prior written consent of the State.

Proposed Deviation or Exception: Notwithstanding Section 3.7 of the Uniform Terms and Conditions and Property of the State. Excluding Contractor IP (as defined below), a~~A~~ny materials, including reports, computer programs and other deliverables, created soley and exclusively for the State under this Contract without reference to Contractor IP are the sole property of the State ("State Owned Deliverables"). The Contractor is not entitled to a patent or copyright on ~~those materials~~State Owned Deliverables and may not transfer the patent or copyright to anyone else. The Contractor shall not use or release ~~these materials~~ State Owned Deliverables without the prior written consent of the State.

Results: Accepted.

41. Reference: STC 60 Ownership of Intellectual Property (New)

Original Language: 3.8. Ownership of Intellectual Property. Any and all intellectual property, including but not limited to copyright, invention, trademark, trade name, service mark, and/or trade secrets created or conceived pursuant to or as a result of this contract and any related subcontract ("Intellectual Property"), shall be work made for hire and the State shall be considered the creator of such Intellectual Property. The agency, department, division, board or commission of the State of Arizona requesting the issuance

of this contract shall own (for and on behalf of the State) the entire right, title and interest to the Intellectual Property throughout the world. Contractor shall notify the State, within thirty (30) days, of the creation of any Intellectual Property by it or its subcontractor(s). Contractor, on behalf of itself and any subcontractor(s), agrees to execute any and all document(s) necessary to assure ownership of the Intellectual Property vests in the State and shall take no affirmative actions that might have the effect of vesting all or part of the Intellectual Property in any entity other than the State. The Intellectual Property shall not be disclosed by contractor or its subcontractor(s) to any entity not the State without the express written authorization of the agency, department, division, board or commission of the State of Arizona requesting the issuance of this contract.

Proposed Deviation or Exception: NEW STC 60 Ownership of Intellectual Property. State Owned Deliverables.
Any and all ~~intellectual property~~ State Owned Deliverables, including but not limited to copyright, invention, trademark, trade name, service mark, and/or trade secrets contained therein ~~created or conceived pursuant to or as a result of this contract and any related subcontract (~~"State Owned Intellectual Property"), shall be work made for hire and the State shall be considered the creator of such Intellectual Property the State Owned Intellectual Property. The agency, department, division, board or commission of the State of Arizona requesting the issuance of this contract shall own (for and on behalf of the State) the entire right, title and interest to the State Owned Intellectual Property throughout the world. Each applicable Scope of Work shall identify State Owned Deliverables and absent such identification the Deliverable will be Contractor's, as defined below. ~~Contractor shall notify the State, within thirty (30) days, of the creation of any Intellectual Property by it or its subcontractor(s)~~. Contractor, on behalf of itself and any subcontractor(s), agrees to execute any and all document(s) reasonably necessary to assure ownership of the State Owned Intellectual Property vests in the State and shall take no affirmative actions that might have the effect of vesting all or part of the State Owned Intellectual Property in any entity other than the State.

The State Owned Intellectual Property shall not be disclosed by contractor or its subcontractor(s) to any entity not the State without the express written authorization of the agency, department, division, board or commission of the State of Arizona requesting the issuance of this contract. Notwithstanding the foregoing, the State grants Contractor and its subcontractors the non-exclusive license to use and modify State Owned Intellectual Property in connection with their performance under this Contract.

Notwithstanding Section 3.8 of the Uniform Terms and Conditions, Contractor IP. Contractor's Solution consists of Contractor's privately funded commercial off the shelf software. Contractor is the sole and exclusive owner of all intellectual property, including copyright, patent, trademarks, and trade secrets in and to the Contractor's Solution, the software contained therein, and all Deliverables, including all modifications, enhancements, revisions and derivatives thereto ("Contractor's IP"). This Contract shall not grant the State of Arizona or any department or agency therein with any ownership rights in or to Contractor's IP, all of which is expressly reserved by Contractor.

Results: Denied. Per Ownership of Intellectual Property clause to be included in Contract Amendment 1 per Letter of Intent dated September 28, 2022.

42. Reference: UTC 4.5.2 Availability of Funds for the Current State Fiscal Year

Original Language: 4.5.2. Cancel the Contract; or

Proposed Deviation or Exception: Cancel the Contract without liability or penalty and provided that funds are available, the State shall pay Contractor for work performed up to the date of cancellation; or The State shall promptly notify Contractor in writing upon discovery: (a) the funds may be unavailable during the next or current fiscal year; and (b) the funds are unavailable during the next or current fiscal year

Results: Withdrawn.

43. Reference: UTC 6.2.1 Indemnification

Original Language: 6.2.1. Contractor/Vendor Indemnification (Not Public Agency) The parties to this contract agree that the State of Arizona, its departments, agencies, boards and commissions shall be indemnified and held harmless by the contractor for the vicarious liability of the State as a result of entering into this contract. However, the parties further agree that the State of Arizona, its departments, agencies, boards and commissions shall be responsible for its own negligence. Each party to this contract is responsible for its own negligence.

Proposed Deviation or Exception: Contractor/Vendor Indemnification (Not Public Agency) The parties to this contract agree that the State of Arizona, its departments, agencies, boards and commissions shall be indemnified and held harmless by the contractor for the vicarious liability of the State exclusively attributable to Contractor's breach of this contract. as a result of entering into this contract.

Results: Withdrawn.

44. Reference: UTC 6.3 Indemnification-Patent and Copyright

Original Language: 6.3. Indemnification - Patent and Copyright. The Contractor shall indemnify and hold harmless the State against any liability, including costs and expenses, for infringement of any patent, trademark or copyright arising out of Contract performance or use by the State of materials furnished or work performed under this Contract. The State shall reasonably notify the Contractor of any claim for which it may be liable under this paragraph. If the contractor is insured pursuant to A.R.S. § 41-621 and § 35-154, this section shall not apply.

Proposed Deviation or Exception: Indemnification - Patent and Copyright. The Contractor shall indemnify and hold harmless the State against any third-party liability, including costs and expenses, for infringement of any patent, trademark or copyright arising exclusively out of Contractor IP provided under this Contract, and State's use of Contractor IP as permitted in this Contract. ~~performance or use by the State of materials furnished or work performed under this Contract.~~ The State shall reasonably notify the Contractor of any claim for which it may be liable under this paragraph. If the contractor is insured pursuant to A.R.S. § 41-621 and § 35-154, this section shall not apply.

Results: Withdrawn.

45. Reference: UTC 7.3 Fitness

Original Language: 7.3. Fitness. The Contractor warrants that any material supplied to the State shall fully conform to all requirements of the Contract and all representations of the Contractor, and shall be fit for all purposes and uses required by the Contract.

Proposed Deviation or Exception: Fitness. The Contractor warrants that any material supplied to the State shall fully conform to all material requirements of the Contract and all representations of the Contractor and shall be fit for all purposes and uses required by the Contract.

Results: Withdrawn.

46. Reference: UTC 8.2.1 Stop Work Order

Original Language: 8.2.1. The State may, at any time, by written order to the Contractor, require the Contractor to stop all or any part, of the work called for by this Contract for period(s) of days indicated by the State after the order is delivered to the Contractor. The order shall be specifically identified as a stop work order issued under this clause. Upon receipt of the order, the Contractor shall immediately comply with its terms and take all reasonable steps to minimize the incurrence of costs allocable to the work covered by the order during the period of work stoppage.

Proposed Deviation or Exception: *(Add the following as the last sentence of this provision)*."The State shall be responsible for the payment of any increase in costs incurred by the Contractor attributable to stop work order."

Results: Withdrawn.

47. Reference: UTC 8.4 Nonconforming Tender

Original Language: 8.4. Nonconforming Tender. Materials or services supplied under this Contract shall fully comply with the Contract. The delivery of materials or services or a portion of the materials or services that do not fully comply constitutes a breach of contract. On delivery of nonconforming materials or services, the State may terminate the Contract for default under applicable termination clauses in the Contract, exercise any of its rights and remedies under the Uniform Commercial Code, or pursue any other right or remedy available to it.

Proposed Deviation or Exception: Nonconforming Tender. Materials or services supplied under this Contract shall ~~fully~~ materially comply with the Contract. The delivery of materials or services or a portion of the materials or services that do not ~~fully~~ materially comply which is not made conforming by Contractor constitutes a breach of contract. On delivery of nonconforming materials or services, the State may terminate the Contract for default under applicable termination clauses in the Contract, exercise any of its rights and remedies under the Uniform Commercial Code or pursue any other right or remedy available to it if Contractor does not fix the material nonconformity to make it conforming.

Results: Withdrawn.

48. Reference: UTC 9.4 Termination for Convenience

    Original Language: 9.4. Termination for Convenience. The State reserves the right to terminate the Contract, in whole or in part at any time when in the best interest of the State, without penalty or recourse. Upon receipt of the written notice, the Contractor shall stop all work, as directed in the notice, notify all subcontractors of the effective date of the termination and minimize all further costs to the State. In the event of termination under this paragraph, all documents, data and reports prepared by the Contractor under the Contract shall become the property of and be delivered to the State upon demand. The Contractor shall be entitled to receive just and equitable compensation for work in progress, work completed and materials accepted before the effective date of the termination. The cost principles and procedures provided in A.A.C. R2-7-701 shall apply.

    Proposed Deviation or Exception: *Delete last sentence of this provision and replace with the following:* "The State shall pay Contractor for work performed up to the date of cancellation."

    Results: Withdrawn.

49. Reference: UTC 9.5.1 Termination for Default

    Original Language: 9.5.1. In addition to the rights reserved in the contract, the State may terminate the Contract in whole or in part due to the failure of the Contractor to comply with any term or condition of the Contract, to acquire and maintain all required insurance policies, bonds, licenses and permits, or to make satisfactory progress in performing the Contract. The Procurement Officer shall provide written notice of the termination and the reasons for it to the Contractor.

    Proposed Deviation or Exception: In addition to the rights reserved in the contract, the State may terminate the Contract in whole or in part due to the failure of the Contractor to comply with any material term or condition of the Contract, to acquire and maintain all required insurance policies, bonds, licenses and permits, or to make satisfactory progress in performing the Contract causing the State to have a good faith belief that the Contractor will not be able to perform under the contract. The Procurement Officer shall provide written notice of the termination and the reasons for it to the Contractor.

    Results: Withdrawn.

50. Reference: UTC 9.5.2 Termination for Default

    Original Language: 9.5.2. Upon termination under this paragraph, all goods, materials, documents, data and reports prepared by the Contractor under the Contract shall become the property of and be delivered to the State on demand.

    Proposed Deviation or Exception: Delete

    Results: Withdrawn.

51. Reference: UTC 9.5.3 Termination for Default

Original Language: 9.5.3. The State may, upon termination of this Contract, procure, on terms and in the manner that it deems appropriate, materials or services to replace those under this Contract. The Contractor shall be liable to the State for any excess costs incurred by the State in procuring materials or services in substitution for those due from the Contractor.

Proposed Deviation or Exception: The Contractor shall be liable to the State for any awarded excess costs incurred by the State in procuring materials or services in substitution for those due from the Contractor

Results: Withdrawn.

52. Reference: GUS End User Software License Agreement

    Original Language: N/A. This is an Additional Agreement.

    Proposed Deviation or Exception: Addition of GUS End User Software License Agreement.

    Results: To be negotiated post contract award.

In addition, ADES and the Contractor agree to the following:

1. Deviations and Exceptions submitted in Attachment 8 of the Contractor's Best and Final Offer that are not in the best interest of the State and that ADES does not accept into the final contract agreement are hereby discussed further in Agreement Addendum 1.

2. The parties agree that the GUS End User Software License Agreement is subject to further negotiations and will be binding upon the parties and set forth in a written amendment to the Contract signed by ADES and the Contractor.

3. The parties agree that the Special Terms and Conditions specified in the Letter of Intent: Information Technology Contracts is subject to further negotiations and will be binding upon the parties and set forth in a written amendment to the Contract signed by ADES and the Contractor.

ACCEPTED BY:

Paul Toomey
President
Geographic Solutions Inc.

Dec 20, 2022
Date

David Steuber
Chief Procurement Officer
ADES Office of Procurement

12/20/2022
Date

DEPARTMENT OF ECONOMIC SECURITY
Your Partner For A Stronger Arizona

Douglas A. Ducey
Governor

Michael Wisehart
Director

Agreement Addendum 1

BPM003908 UI Benefits Modernization

The Arizona Department of Economic Security (the "Agency") and Geographic Solutions Inc. (the "Contractor") a business having its principal place of business at 1001 Omaha Circle, Palm Harbor, FL 34683 are this day entering into a contract and, for their mutual convenience, agree to enter into a contract with exceptions noted herein, acceptable to the Agency. Nonetheless, because Contractor's submittal of BPM003908 BAFO, Attachment 8, Deviations and Exceptions, Deviations and Exceptions List cannot be accepted by the Agency, and in consideration of the convenience of accepting Contractor's Best and Final Offer submittal, without the necessity of specifically negotiating a separate contract document, the parties hereto specifically agree that, notwithstanding any provisions appearing in the Contractor's Best and Final Offer, none of the following shall have any effect or be enforceable against the Agency or any of its officers, directors, employees or agents:

1. Limiting STC 10.1 Confidentiality by requiring the Agency to provide Contractor with at least twenty (20) days to seek court intervention to prohibit the disclosure of Contractor's information. The Agency's sole obligation is to provide written notice to the Contractor. Public Records Requests must be responded to promptly. Furthermore, if the Contractor receives a request for information regarding this contract, all requests for information shall be made to the Agency directly. Contractor shall not release information relating to this contract to third-parties.

2. Non-compliance with STC 12 Cooperation.

3. Non-compliance with UTC 2.2. Implied Contract Terms.

4. Non-compliance with UTC 3.8, requiring that each applicable Scope of Work identify State Owned Deliverables and absent such identification the Deliverable will be Contractor's.

IN WITNESS WHEREOF, the parties have caused this agreement to be duly executed as of the last date set forth below by the undersigned authorized representatives of the parties, intending thereby to be legally bound.

Geographic Solutions Inc.

By: _____
(Signature)

Name: Paul Toomey

Title: President

Date: Dec 20, 2022

Arizona Department of Economic Security

By: _____ Digitally signed by Steuber, David S Date: 2022.12.20 11:19:58 -07'00'
(Signature)

Name: David Steuber

Title: Chief Procurement Officer

Date: 12/20/2022